

ARTICLE 3

STREETS, ROADS & DRIVEWAYS

1. GENERAL

A. PURPOSE

1. To establish a context-based classification of streets, roads, and driveways calibrated to the Districts of this Code.
2. To require that new streets, roads, and driveways are designed in a manner that supports and reinforces the character of the District in which they are located.
3. To provide a method for classifying existing streets and roads into the Street/Road Types defined herein.
4. To resolve design conflicts between vehicular and pedestrian movement in favor of the pedestrian within urban Districts, and in favor of the vehicle within rural Districts.
5. To distinguish between the form and character of a street or road (regulated by this Article) and its statutory ownership and maintenance status (governed by Title 23 of the Maine Revised Statutes).
6. To absorb, calibrate, and supersede the Newcastle Road, Driveway, and Entrance Ordinance adopted November 3, 2020, which is repealed concurrent with the adoption of this Article.

B. APPLICABILITY

1. Unless otherwise specified, this Article is applicable to all streets, roads, and driveways throughout the Town of Newcastle.
2. Applies to each new street, road, driveway, and entrance that connects to a public way, and to the alteration, enlargement, reconstruction, or discontinuance of an existing street, road, driveway, or entrance on or after the effective date of this Article.
3. Applies to the classification of existing streets and roads in accordance with Section 5 of this Article.
4. If a permit or approval is required under this Article, no earth moving or construction may occur prior to obtaining that permit or approval.

C. AUTHORITY

1. This Article is adopted under the Municipal Home Rule Powers of the Maine Constitution, Article VIII-A and 30-A MRSA Chapter 141, and Chapter 187, and under the authority granted by the Town Meeting that ratified this amendment.

D. COMPLIANCE

1. No street, road, driveway, entrance, or other improvement within the limits of the right-of-way for any public or approved private road or street may be constructed, altered, or relocated except in accordance with this Article.
2. This Article allows waivers from its standards as explicitly authorized within this Article if the Permitting Authority determines that:
 - a. Allowance of the waiver is consistent with the purpose of this Article; and
 - b. The waiver does not exceed the allowed metric variations or qualitative criteria described in the section where the waiver is authorized.

3. Allowance of a waiver under this Article is considered an integral part of the application of this Article and is not considered the granting of a variance, as that term is defined under Maine law.

E. RELATIONSHIP TO OTHER STANDARDS

1. This Article does not abrogate, annul, or otherwise interfere with any easement, covenant, or other private agreement.
2. Where the standards of this Article impose a greater restriction than required by other ordinances, regulations, resolutions, rules, easements, covenants, or agreements, the provision of this Article must apply.
3. The standards of this Article must take precedence over those of other codes, ordinances, regulations, and standards that may be in conflict with this Article, except as provided in Section 12 with respect to state-aid roads.
4. All development activity must comply with relevant Federal and State law and regulations. Where there is a conflict between this Article and the standards of a Federal or State law, Federal or State law supersedes the standards of this Article.

2. STREET & ROAD TYPES

A. PURPOSE

1. To establish a system of named Street and Road Types whose standards reinforce the character of each District.
2. To enable a single classification — the Type — to serve both as a design specification for new construction and as a designation for existing streets and roads.
3. To order the public realm on a continuum from most urban (Main Street) to most rural (Rural Road and Rural Lane), with Driveway designated as the smallest form of vehicular access.

B. APPLICABILITY

1. Every street and road within the Town of Newcastle is assigned one Type from the system in this Section, in accordance with Section 5 (Classification of Existing Streets & Roads) or Section 6 (New Streets & Roads).
2. Every Driveway is regulated as a Driveway under Section 7, calibrated by the District in which the driveway is located.

C. GENERAL

1. The Street/Road Types are organized in two families:
 - a. The **Street family** (S-1 through S-5) contains Types whose character emphasizes pedestrian comfort, defined frontages, and lower design speeds. Street Types are intended for the more urban Districts.
 - b. The **Road family** (R-1 through R-5) contains Types whose character emphasizes vehicular movement, working landscapes, and higher design speeds. Road Types are intended for the more rural Districts and for state-aid highway corridors.
2. The Driveway (D) is a third category, distinct from the Street and Road families, and provides private access from a Street or Road to a single lot.

STREETS, ROADS & DRIVEWAYS

3. Within Types S-1 through S-5 and R-1 through R-5, pedestrian comfort considerations are weighted as follows: in Types S-1 through S-4, pedestrian comfort is a primary consideration. In Types S-5 (Alley), R-1, R-2, and R-3, pedestrian comfort is a secondary consideration but is not eliminated. In Types R-4 and R-5, vehicular movement is the primary consideration consistent with Maine Department of Transportation classification of the corridor.
4. The standards for each Type are set forth in Section 3 (Type Standards Table) and Section 11 (Construction Standards).

D. MAIN STREET (S-1)

1. **Description.** A Main Street is the most urban Street Type. It provides the central organizing thoroughfare of the Town Center, with continuous building streetwalls, active ground-floor uses, wide sidewalks, on-street parking on both sides, and the lowest design speed in the typology.
2. **Target Districts.** D6 Town Center; designated segments of D5 Village Business where a shopfront character is required.
3. **Character.** A Main Street has buildings at or near a 0 ft front setback, sidewalks on both sides supporting pedestrian activity, on-street parking that buffers pedestrians from moving traffic, street trees in tree pits within the furnishing zone, and narrow travel lanes that calm traffic.
4. **Shopfront attribute.** A street classified as S-1 is treated as a "Shopfront Required" street under Article 2 §4.C. The separate Shopfront Required overlay shown on the District Map is therefore subsumed within the S-1 classification.

E. VILLAGE STREET (S-2)

1. **Description.** A Village Street provides mixed-use frontages in village centers, with sidewalks on both sides, optional on-street parking, and a design speed appropriate to pedestrian-prioritized neighborhood streets.
2. **Target Districts.** D5 Village Business; edges of D6 Town Center; central segments of SD-Historic Village Business; edges of D6 Town Center; central segments of SD-Historic Village Business.
3. **Character.** A Village Street accommodates a mix of detached and attached buildings with shallow front setbacks. Buildings face the street with primary entrances at the sidewalk. On-street parking may be street permitted on one or both sides depending on the segment and abutting at uses; one side and may be permitted on both sides depending on the segment.
4. **Shopfront attribute.** A street classified as S-2 may be designated Shopfront Required on a segment-by-segment basis on the District Map.
4. **Where so designated.** S-2 segments are subject to the shopfront standards of Article 5 §12, where so designated. S-2 segments are subject to the shopfront standards of Article 5 §12, where so designated.

F. NEIGHBORHOOD STREET (S-3)

1. **Description.** A Neighborhood Street provides connections within and between residential and small-business neighborhoods, with a sidewalk on at least one side, a planting strip, on-street parking permitted, and a residential-scale design speed.
2. **Target Districts.** D2 Neighborhood Residential; D3 Neighborhood Business; D4 Village Residential; SD-Historic outside the central segments.
3. **Character.** A Neighborhood Street is the most common Street Type in Newcastle's villages outside the Town Center. Buildings face the street with front setbacks consistent with the abutting District. Street trees are encouraged within the furnishing zone, and sidewalks are required on at least one side, consistent with the abutting District. Street trees are encouraged within the furnishing zone, and sidewalks are required on at least one side, consistent with the abutting District.

G. LANE (S-4)

1. **Description.** A Lane is a narrow, low-speed Street Type that provides frontage and access along small interconnected streets internal to a neighborhood or village block. A Lane carries two narrow travel lanes that operate in a yield fashion at very low speed, with a sidewalk on one side or none, and is larger than an Alley (S-5).

2. **Target Districts.** D2 Neighborhood Residential; D4 Village Residential; D5 Village Business; D6 Town Center; SD-Historic; SD-Campus. A Lane may be developed on other Street Types or may "punch in" to reach the rear of road-facing parcels and open the interior of a block to frontage and development.
3. **Character.** A Lane has buildings facing it with shallow setbacks, a single shared travel surface narrow enough that opposing vehicles yield, optional on-street parking on one side, and a sidewalk on one side where a single pedestrian volume warrants. Curbs are rolled or absent and the design speed is very low. A Lane is distinguished from an Alley (S-5) in that buildings front on a Lane, while an Alley provides only rear or side service access.

H. ALLEY (S-5)

1. **Description.** An Alley is a narrow service street internal to a block that provides access to the side or rear of lots for parking, loading, accessory building, and utility easements. Buildings do not front on an Alley.
2. **Target Districts.** Permitted internal to any urban or village District (D3-D6, SD-Historic, SD-Fabrication, SD-Civic). An Alley is the only Street Type permitted to provide rear-lot vehicular access in D6 Town Center.
3. **Character.** An Alley has no required sidewalk, no on-street parking, and a narrow paved width. Speeds are functionally low due to width. Curb returns are tight and turning radii are sized for delivery and emergency vehicles.

I. CONNECTOR ROAD (R-1)

1. **Description.** A Connector Road is the most "Street-like" of the Road family. It provides connections in the rural-to-urban transition zone, with shoulders rather than curbs, no continuous sidewalks, and design speeds higher than any Street Type.
2. **Target Districts.** Transition between D1 Rural and D2 Neighborhood Residential; secondary routes within SD-Rural Highway; rural connections between villages.
3. **Character.** A Connector Road serves through travel between villages and into rural areas. Building setbacks are larger than on Streets. Shoulders accommodate occasional pedestrians and bicyclists. Drainage is by ditches and culverts rather than curb-and-gutter. Shoulders accommodate occasional pedestrians and bicyclists. Drainage is by ditches and culverts rather than curb-and-gutter.

J. RURAL ROAD (R-2)

1. **Description.** A Rural Road is the standard rural Road Type. It provides access to working landscapes — farmland, forest, conservation lands — with the narrowest standard pavement, no curbs, and drainage by open ditches. The Rural Lane (R-3) is a lower-volume variant for narrower rural ways.
2. **Target Districts.** D1 Rural; SD-Conservation; rural portions of the SD-Marine corridor not accessed by a Connector Road.
3. **Character.** A Rural Road may be paved or unpaved (gravel) consistent with its segment and the abutting use. Roadside vegetation is generally preserved. Driveway entrances are widely spaced consistent with the large lot frontages of D1 or abutting use. Roadside vegetation is generally preserved. Driveway entrances are widely spaced consistent with the large lot frontages of D1 or abutting use.

K. RURAL LANE (R-3)

1. **Description.** A Rural Lane is a low-volume rural yield roadway providing access to a small number of lots, working landscapes, or back land in the rural landscape. It is the rural counterpart to the Lane (S-4): a single shared travel surface, or two very narrow lanes, on which opposing vehicles yield. A Rural Lane carries the lowest traffic volumes in the Road family, generally fewer than 400 vehicles per day, on which opposing vehicles yield.
2. **Target Districts.** D1 Rural; SD-Conservation; low-volume segments otherwise eligible for R-2 Rural Road where traffic volumes and abutting uses do not warrant a full two-lane section.

3. **Character.** A Rural Lane may be gravel or paved. Drainage is by open ditches with no curb, and roadside vegetation is generally preserved. Where the traveled way is 15 ft or narrower, the Rural Lane functions as a one-way single-lane roadway; passing pull-outs sufficient for two vehicles to pass will and for the deployment of fire apparatus shall be provided at intervals of no more than 300 ft. The Rural Lane gives the Town a conforming designation for the many existing narrow rural ways, including historic two-rod (33 ft) rights-of-way, that cannot meet the full Rural Road section.

L. HIGHWAY COMMERCIAL (R-4)

1. **Description.** A Highway Commercial street/road is an auto-oriented commercial corridor with access management, sidewalks where feasible, and coordination with MaineDOT for the cartway geometry.
2. **Target Districts.** SD-Highway Commercial/road is an auto-oriented commercial corridor.
3. **Character.** A Highway Commercial corridor accommodates large commercial buildings with deep front setbacks. The cartway is designed and maintained per MaineDOT standards. The frontage zone, building setbacks, sidewalk where present, and access management (curb cuts, driveway spacing) are governed by this Article and Article 2.
4. **State-aid coordination.** Most R-4 segments are state-aid roads. See Section 12 for the coordination protocol with MaineDOT. (curb cuts, driveway spacing) are governed by this Article and Article 2.

M. RURAL HIGHWAY (R-5)

1. **Description.** A Rural Highway is a high-speed regional corridor through rural and conservation contexts, with deep front setbacks, vegetative screening, and MaineDOT-controlled cartway geometry.
2. **Target Districts.** SD-Rural Highway is a high-speed regional corridor through rural and conservation contexts.
3. **Character.** A Rural Highway preserves the rural character of the corridor by maintaining vegetative screening between the cartway and abutting development. Deep front setbacks measured from the centerline, and tightly managed curb-cut spacing, serves the rural character of the corridor.
4. **State-aid coordination.** All R-5 segments are state-aid roads. See Section 12 for the coordination protocol with MaineDOT. From the centerline, and tightly managed curb-cut spacing.

N. DRIVEWAY (D)

1. **Description.** A Driveway is a private vehicular access way from a Street or Road to the interior of a single lot, including access to homes, parking lots, or loading docks. A Driveway is not a Street or Road and is not subject to the construction specifications of Section 11.
2. **Applicability.** A Driveway provides access to no more than two single-family dwellings or one two-family dwelling on a single lot, except where a shared driveway is authorized under Section 7.B.

TABLE 3.1a STREET TYPE STANDARDS

Standard	S-1 Main St.	S-2 Village St.	S-3 Neighborhood St.	S-4 Lane	S-5 Alley
Right-of-Way width	66-80 ft	50 ft	50 ft	30-40 ft	16-20 ft
Travelway (traveling lanes)	20-22 ft	20 ft	20 ft	16-20 ft	12-16 ft
Travel lanes in the driveway is located.	2 @ 10-11 ft	2 @ 10 ft	2 @ 10 ft	2 @ 8-10 ft	1-2 @ 8-10 ft
On-street parking lane (each side)	7-8 ft, both sides	7-8 ft, optional both	7-8 ft, one side	7-8 ft, optional one side	none
Curb type	vertical	vertical or rolled	rolled or none	rolled or none	none
Planting strip width	5-8 ft both sides	5 ft min one side	4 ft min one side	optional	none
Sidewalk	both sides 8-12 ft	both sides 5 ft min	one side 5 ft min	one side 5 ft, optional	none
Street trees	encouraged	encouraged	encouraged	encouraged	permitted
Design speed	20 mph	25 mph	25 mph	15 mph	10-15 mph
Maximum block length	400 ft	500 ft	600 ft	none	none
Curb return radius at intersections	10-15 ft	15-20 ft	15-25 ft	10-15 ft	5-10 ft
Maximum grade	6%	8%	6%	10%	10%
Surface	paved	paved	paved	paved	paved
Minimum sight distance	per Table 3.2	per Table 3.2	per Table 3.2	per Table 3.2	per Table 3.2
Pavement specification	per Table 3.3	per Table 3.3	per Table 3.3	per Table 3.3	per Table 3.3

2. **Applicability.** A Driveway provides access to no more than two single-family dwellings or one two-family dwelling on a single lot, except where a shared driveway is authorized under Section 7.B.
3. **Calibration.** Driveway standards in Section 7 are calibrated by the District in which the driveway is located.

C. GENERAL

3. TYPE STANDARDS TABLE

A. PURPOSE

1. To provide, in a single table, the dimensional and qualitative standards for each Street and Road Type.
2. Where a range is given (e.g., "10-11 ft"), the value selected within the range must be supported by an engineering justification submitted with the application.
3. Where "per MaineDOT" is indicated, the Maine Department of Transportation's current geometric design standards for the applicable functional classification apply to the cartway. The Town retains authority over the frontage zone, building setbacks, sidewalks, and access management as set forth in this Article and in Article 2.

B. APPLICABILITY

1. The standards in this Section apply to the design and construction of new streets and roads under Section 6, and to the modification of existing streets and roads under Section 14.
2. Sight distance standards (Section 8) and construction specifications (Section 10) are referenced from the Type Standards Table but defined in their respective sections.

D. BASIS FOR RIGHT-OF-WAY WIDTHS

C. GENERAL

1. Each Street Type is described by the standards in Table 3.1a (Street Type Standards), and each Road Type by the standards in Table 3.1b (Road Type Standards).
2. Where a range is given (e.g., "10-11 ft"), the value selected within the range must be supported by an engineering justification submitted with the application.
3. The widths herein reflect the traditional New England rod (1 rod = 16.5 ft; a Main Street is 11 @ 66 ft is four rods, the historic town-road width of application).
4. Where "per MaineDOT" is indicated, the Maine Department of Transportation's current geometric design standards for the applicable functional classification apply to the cartway. The Town retains authority over the frontage zone, building setbacks, sidewalks, and access management as set forth in this Article and in Article 2.
5. No Maine statute prescribes a minimum right-of-way width. SO-A MRSA §4404 requires only that a subdivision not cause unreasonable highway or public road congestion or unsafe conditions. These widths are set under the Town's home-rule authority (Section 1.C), and the safety-critical dimensions — traveled way width, sight distance (Section 8), and intersection geometry (Section 9) — are fixed independently of the right-of-way range.

4. OWNERSHIP CATEGORIES

A. PURPOSE

1. To distinguish the form and character of a street or road regulated as a Type under this Article, from its statutory ownership and maintenance status. (policy citations here.)

4. OWNERSHIP CATEGORIES

A. PURPOSE

1. To distinguish the form and character of a street or road regulated as a Type under this Article, from its statutory ownership and maintenance status. (policy citations here.)
2. To recognize the four ownership categories that exist under Maine law and to acknowledge that any Street or Road Type may, in fact, exist under any of these categories.

B. APPLICABILITY

1. The Ownership Category of a street or road is recorded on the District Map alongside its Type.
2. The Ownership Category of a street or road is recorded on the District Map alongside its Type.

STREETS, ROADS & DRIVEWAYS

C. CATEGORIES
 2. To recognize the four ownership categories that exist under Maine law and Town practice, and to acknowledge that any Street or Road Type may, in principle, exist under any of these categories.
 1. **Town Way.** A street or road formally accepted by the Town under 23 MRSA §3022 by vote at Town Meeting. The Town maintains a Town Way and bears responsibility for repairs.

B. APPLICABILITY
 2. **Public Easement.** A street or road over which the public holds an easement under 23 MRSA §3021, sometimes referred to historically as a "private way." The public has the right of access but the Town does not bear maintenance responsibility.
 1. Every street and road within the Town of Newcastle is assigned, in addition to its Type, one Ownership Category from this Section.
 2. The Ownership Category of a street or road is recorded on the District Map and is subject to change as needed.
 3. **Private Road type.** A street or road in fully private ownership over which no public access right exists. Maintenance is the responsibility of the private owner or association.

C. CATEGORIES
 1. **Town Way.** A street or road formally accepted by the Town under 23 MRSA §3022 by vote at Town Meeting. The Town maintains a Town Way and bears responsibility for repairs.
 2. **Public Easement.** A street or road over which the public holds an easement under 23 MRSA §3021, sometimes referred to historically as a "private way." The public has the right of access but the Town does not bear maintenance responsibility.
 3. **Private Road.** A street or road in fully private ownership over which no public access right exists. Maintenance is the responsibility of the private owner or association.
 4. **State Highway.** A street or road owned and maintained by the State of Maine through the Maine Department of Transportation. US Route 1 within Newcastle is a State Highway. State Highways are subject to the coordination protocol in Section 12.

D. RELATIONSHIP TO TYPE
 1. The Type of a street or road describes its form, character, and design standards. The Ownership Category describes its statutory ownership and maintenance status. The two designations are independent: a Main Street (S-1) may be a Town Way, a Public Easement, or a State Highway; a Rural Road (R-2) may be a Town Way or a Private Road.
 2. Where the standards of this Article conflict with the standards or practices applicable to a particular Ownership Category — for example, with MaineDOT design standards for a State Highway, or with the terms of a Public Easement instrument — the provisions of Section 12 (Coordination with MaineDOT) and Section 4.E (below) apply.

TABLE 3.1a STREET TYPE STANDARDS

Standard	S-1 Main St.	S-2 Village St.
Travelled way (moving lanes)	20-22 ft	20 ft
Travel lanes	2 @ 10 ft	2 @ 8-10 ft
On-street parking lane (each side)	none	optional, one side
Curb type	curb or rolled	curb or rolled
Planting strip width	optional, both sides	optional, both sides
Sidewalk	optional 5 ft min	optional 5 ft min
Street speed	required	required
Design speed	35 mph	25 mph
Maximum block length	400 ft	300 ft
Curb return radius at intersections	10-15 ft	15-20 ft
Maximum grade	6%	8%
Surface	paved	paved
Minimum sight distance	per Table 3.2	per Table 3.2
Pavement specification	per Table 3.3	per Table 3.3

TABLE 3.1b ROAD TYPE STANDARDS

Standard	R-1 Connector	R-2 Rural Road	R-3 Rural Lane	R-4 Hwy Commercial	R-5 Rural Highway
Right-of-Way width	50 ft	50 ft	33-50 ft	per MaineDOT	per MaineDOT
Travelled way (moving lanes)	20 ft	18-20 ft	12-18 ft	per MaineDOT	per MaineDOT
Travel lanes	2 @ 10 ft	2 @ 9-10 ft	1 shared, or 2 @ 8-9 ft	per MaineDOT	per MaineDOT
On-street parking lane (each side)	none	none	none	not in carway	not in carway
Curb type	none (shoulder)	none (shoulder)	none (shoulder + ditch)	per MaineDOT	per MaineDOT
Planting strip width	optional	none	none	per District page	none
Sidewalk	optional 5 ft	none	none	where feasible	none
Street trees	permitted	permitted	permitted	encouraged	permitted
Design speed	35 mph	25-35 mph	15-25 mph	per MaineDOT	per MaineDOT
Maximum block length	n/a	n/a	n/a	n/a	n/a
Curb return radius at intersections	25-35 ft	25-35 ft	15-25 ft	per MaineDOT	per MaineDOT
Maximum grade	10%	12%	12%	per MaineDOT	per MaineDOT
Surface	paved	paved or gravel	gravel acceptable	per MaineDOT	per MaineDOT
Minimum sight distance	per Table 3.2	per Table 3.2	per Table 3.2	per Table 3.2	per Table 3.2
Pavement specification	per Table 3.3	per Table 3.3	per Table 3.3	per MaineDOT	per MaineDOT

E. PROCESS FOR CHANGING OWNERSHIP
 1. The acceptance of a Private Road or Public Easement as a Town Way is a Town Meeting matter and is processed under Article 8 §20 Land Conveyance.
 2. Discontinuance of a Town Way is processed under 23 MRSA §3026-A and Article 8 §27 Planning Board.
 3. Changes in Ownership Category do not by themselves change the Type of a street or road. The Type is set under Section 5 or Section 6 and is reviewed only under Section 14.B (Reclassification).

F. PROCESS FOR CHANGING OWNERSHIP
 1. To assign, at adoption of this Article, a Type and an Ownership Category to every existing street and road within the Town of Newcastle.
 2. To establish a process for reviewing and updating the classification of a street or road over time.

5. CLASSIFICATION OF EXISTING STREETS & ROADS
 1. To assign, at adoption of this Article, a Type and an Ownership Category to every existing street and road segment within the Town of Newcastle.
 2. A street or road segment is defined as the length of a named street or road between two principal intersections.

A. PURPOSE
 1. To assign, at adoption of this Article, a Type and an Ownership Category to every existing street and road segment within the Town of Newcastle.

5. CLASSIFICATION OF EXISTING STREETS & ROADS
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A. PURPOSE
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 2. A street or road segment is defined as the length of a named street or road between two principal intersections.

C. INVENTORY OF EXISTING STREETS AND ROADS
 1. The Town shall maintain an inventory of Existing Streets and Roads listing, for every street and road segment in Newcastle, the following information:
 a. Segment name and termini.
 b. Type assigned under this Article.
 c. Ownership Category.
 d. Approximate right-of-way width.
 e. Approximate traveled way width.
 f. Adjacent District(s).
 g. MaineDOT functional classification, where the segment is a state-aid road.
 h. Notes on nonconformity, where the segment does not currently meet the standards of its assigned Type.
 2. The inventory is incorporated by reference into the District Map as Exhibit 3.1 and is treated as a Special Requirement under Article 2 §4.

3. The initial inventory is adopted concurrently with this Article. Subsequent amendments to the inventory are processed under Section 5.E (Reclassification).

B. APPLICABILITY

D. CLASSIFICATION RUBRIC

1. Applies to every named street and road segment within the Town of Newcastle.
1. The Type assigned to an existing segment is determined by applying the following rubric, in the order listed:

a. **Adjacent District test.** A segment whose abutting parcels are predominantly in a given District is provisionally classified as the Type targeted for that District in Section 2 (see also the District-Type cross-reference in Table 3.4).

b. **Built character test.** Where the abutting built form indicates a character at variance with the Adjacent District test — for example, a segment within D2 whose abutting parcels are uniformly rural in character — the Type is adjusted to match the built character.

c. **Right-of-way and cartway test.** Where the existing right-of-way and cartway widths preclude one Type but are consistent with another, the Type is set to the closest match permitted by physical constraints, and the segment is recorded as nonconforming under Section 14.

d. **MaineDOT functional class test.** A segment carrying a MaineDOT functional classification of Principal Arterial or Minor Arterial is presumed to be R-4 (Highway Commercial) or R-5 (Rural Highway) depending on its abutting District. A Collector classification is presumed to be R-1 (Connector Road). A Local classification is presumed to follow the Adjacent District test.

e. **Tie-breaker.** Where the above tests produce conflicting indications, the Planning Board determines the Type after a public hearing, considering the long-term character intent of the abutting District(s).

D. CLASSIFICATION RUBRIC

TABLE 3.4. DEFAULT TYPE BY DISTRICT (CLASSIFICATION GUIDE)

District	Default Street/Road Type(s)
D1 Rural	R-2 Rural Road; R-3 Rural Lane on low-volume segments; R-1 Connector Road on transition segments
D2 Neighborhood Residential	S-3 Neighborhood Street; S-4 Lane on mid-block segments; S-1 Connector Road on edge segments
D3 Neighborhood Business	S-3 Neighborhood Street; S-2 Village Street on center segments
D4 Village Residential	S-3 Neighborhood Street; S-4 Lane on mid-block segments; S-2 Village Street on center segments
D5 Village Business	S-2 Village Street; S-1 Main Street on designated segments; S-4 Lane internal to blocks
D6 Town Center	S-1 Main Street; S-4 Lane and S-5 Alley internal to blocks
SD-Historic	S-2 Village Street center; S-3 Neighborhood Street outside center
SD-Conservation	R-2 Rural Road; R-3 Rural Lane on low-volume segments
SD-Highway Commercial	R-4 Highway Commercial
SD-Rural Highway	R-5 Rural Highway
SD-Campus	S-3 Neighborhood Street; S-4 Lane and S-5 Alley internal
SD-Marine	S-3 Neighborhood Street; R-1 Connector Road on access segments
SD-Fabrication	S-3 Neighborhood Street; S-5 Alley internal
SD-Civic	Type follows adjacent District

E. RECLASSIFICATION (CLASSIFICATION GUIDE)

District	Default Street/Road Type(s)
D1 Rural	R-2 Rural Road; R-3 Rural Lane on low-volume segments; R-1 Connector Road on transition segments
D2 Neighborhood Residential	S-3 Neighborhood Street; S-4 Lane on mid-block segments; S-1 Connector Road on edge segments
D3 Neighborhood Business	S-3 Neighborhood Street; S-2 Village Street on center segments
D4 Village Residential	S-3 Neighborhood Street; S-4 Lane on mid-block segments; S-2 Village Street on center segments
D5 Village Business	S-2 Village Street; S-1 Main Street on designated segments; S-4 Lane internal to blocks
D6 Town Center	S-1 Main Street; S-4 Lane and S-5 Alley internal to blocks
SD-Historic	S-2 Village Street center; S-3 Neighborhood Street outside center
SD-Conservation	R-2 Rural Road; R-3 Rural Lane on low-volume segments
SD-Highway Commercial	R-4 Highway Commercial
SD-Rural Highway	R-5 Rural Highway
SD-Campus	S-3 Neighborhood Street; S-4 Lane and S-5 Alley internal
SD-Marine	S-3 Neighborhood Street; R-1 Connector Road on access segments
SD-Apples to	S-3 Neighborhood Street; S-5 Alley internal
SD-Civic	The construction of any new street or road within the Town.

6. NEW STREETS & ROADS

SD-Highway Commercial	R-4 Highway Commercial
SD-Rural Highway	R-5 Rural Highway
SD-Campus	S-3 Neighborhood Street; S-4 Lane and S-5 Alley internal
SD-Marine	S-3 Neighborhood Street; R-1 Connector Road on access segments
SD-Apples to	S-3 Neighborhood Street; S-5 Alley internal
SD-Civic	The construction of any new street or road within the Town.

B. APPLICABILITY

1. Applies to:
- SD-Civic: The construction of any new street or road within the Town.
- Substantial reconstruction of an existing street or road, where the reconstruction alters the cartway width, right-of-way width, or fundamental design speed.

E. RECLASSIFICATION

1. The Type assigned to an existing street or road segment may be changed only by:
- Does not apply to:
- a. General maintenance of an existing street or road, including patching, resealing, restriping, and shoulder reshaping that does not alter the standards listed in Section 6.B.1.1.3.
- b. Reclassification under this subsection where, in connection with a proposed alteration or improvement, the abutting District has been amended or the built character has demonstrably changed such that the current Type no longer reflects either.

C. TYPE ASSIGNMENT AT TIME OF DESIGN

2. A reclassification petition may be submitted by:
1. The Type of a new street or road must be assigned at the time of design, before construction drawings are prepared.
2. The Type assignment is made by the applicant in consultation with the Code Enforcement Officer and Road Commissioner, based on the abutting District, the intended built character, and the Default Type by District guide in Table 3.4.
3. Where the new street or road serves a Subdivision, the Type assignment is reviewed and approved by the Planning Board as part of the Subdivision Plan under Article 8 §12.
4. Where the new street or road is a state-aid road, MaineDOT coordination is required under Section 12 prior to Type assignment.

6. NEW STREETS & ROADS

D. DESIGN STANDARDS

- A. PURPOSE
1. The design of a new street or road must conform to all standards in Section 3 (Type Standards Table) and Section 11 (Construction Standards) to establish the process and standards for the design and construction of new streets and roads within the Town of Newcastle.

STREETS, ROADS & DRIVEWAYS

B. APPLICABILITY

1. Engineering plans must be prepared and stamped by a Maine-licensed civil engineer.
2. Plans must be reviewed and approved by the Road Commissioner prior to issuance of a Zoning Permit for street or road construction.
3. Substantial reconstruction of an existing street or road, where the right-of-way width, or fundamental design speed.

E. CONSTRUCTION AND INSPECTION

1. Construction must be supervised by a Maine-licensed civil engineer contracted by the Town at the expense of the applicant.
2. The Road Commissioner inspects required improvements during and at the completion of construction.
3. Upon completion, the supervising engineer certifies in writing to the Road Commissioner that all required improvements have been constructed in accordance with the approved plans.

C. TYPE ASSIGNMENT AT TIME OF DESIGN

F. ACCEPTANCE AS A TOWN WAY

1. The Type of a new street or road must be assigned at the time of design.
2. A new street or road constructed under this Section is presumed to remain a Private Road unless and until it is formally accepted as a Town Way by vote at Town Meeting under 23 MRSA §3022.
3. The cost of any improvements required to bring the street or road up to current Town Way acceptance standards shall not be borne by the Town.
4. The Town is not obligated to accept any privately constructed street or road as a Town Way.
5. Where the new street or road serves a Subdivision, the Type assignment is reviewed and approved by the Planning Board as part of the Subdivision Plan under Article 8 §12.

7. DRIVEWAYS

A. PURPOSE

D. DESIGN STANDARDS

1. To provide standards for vehicular access to lots.
2. To preserve the safe transition of vehicles between a Driveway and the abutting Street or Road, calibrated by the District.

B. APPLICABILITY

1. Applies to new Driveways and to the relocation of existing Driveways.
2. Does not apply to the general maintenance of an existing Driveway, including patching, resealing, and grading.
3. The Road Commissioner prior to issuance of a Zoning Permit for street or road construction.

C. GENERAL

E. CONSTRUCTION AND INSPECTION

1. A Driveway provides access only from a Street or Road of a Type defined in Section 2 to the interior of a single lot.
2. A Residential Companion use may share a Driveway with the primary dwelling unit on the same lot.
3. Abutting lots may share a Driveway provided that an access easement exists between all owners and the shared Driveway complies with the entrance standards in Section 8.
4. A Driveway may pass through required front, side, and rear setbacks to access permitted parking locations.
5. One Driveway is permitted per building lot or virtual lot.
6. In D1 Rural and D2 Neighborhood Residential, more than one Driveway per lot is permitted, subject to the entrance spacing standards in Section 8.

F. ACCEPTANCE AS A TOWN WAY

1. A new street or road constructed under this Section is presumed to remain a Private Road unless and until it is formally accepted as a Town Way by vote at Town Meeting under 23 MRSA §3022.

D. DESIGN

1. All Driveways must comply with the entrance standards of Section 8 and the intersection standards of Section 9.
2. Driveways must be constructed to prevent water run-off onto the adjacent Street or Road.

7. DRIVEWAYS

A. PURPOSE

1. To provide standards for vehicular access to lots.

2. In Districts D3 through D6 and in urban Special Districts, the first 10 ft of a Driveway must match the slope and grade of the abutting sidewalk or, where no sidewalk is present, the abutting shoulder.

B. APPLICABILITY

1. Where the Permitting Authority determines that a Driveway culvert is necessary, the applicant shall bear the burden of the cost for the culvert installation, which shall be constructed to the standards of Section 10.
2. Does not apply to the general maintenance of an existing Driveway, including patching, resealing, and grading.

E. CALIBRATION BY DISTRICT

C. GENERAL

1. Driveway maximum width is calibrated by District as follows:

- a. D1, D2, R-1/R-2/R-3 corridors: 24 ft max
- b. D3, D4, S-3 corridors: 20 ft max
- c. D5, D6, S-1/S-2 corridors: 12 ft max within the frontage zone (may flare beyond the frontage zone)
- d. SD-Highway Commercial, SD-Rural Highway: 30 ft max with MaineDOT entrance permit

8. ENTRANCES

A. PURPOSE

1. To provide standards for the safe transition of vehicles at the point of intersection where Driveways, parking lots, and access ways meet a Street or Road.

D. DESIGN

B. APPLICABILITY

1. All Driveways must comply with the entrance standards of Section 8 and the intersection standards of Section 9.
2. Driveways must be constructed to prevent water run-off onto the adjacent Street or Road.

C. GENERAL

1. In Districts D1, D2, and rural Special Districts, a Driveway may be sloped no greater than 3% above or below the adjacent cartway for the first 20 ft of the Driveway.
2. An entrance onto a State Highway (R-4 or R-5) must be approved by the Maine Department of Transportation in accordance with 23 MRSA §704. A copy of MaineDOT approval shall be submitted to the Permitting Authority at the time of application review.
3. Entrance standards apply to the first 20 ft of the Driveway, road, or parking lot that intersects the Street or Road.

D. DESIGN

E. CALIBRATION BY DISTRICT

1. All entrances must be designed and constructed in accordance with the latest Maine Department of Transportation's Manual for Standard Specifications.

1. Driveway maximum width is calibrated by District as follows:
- a. D1, D2, R-1/R-2/R-3 corridors: 24 ft max
- b. D3, D4, S-3 corridors: 20 ft max
- c. D5, D6, S-1/S-2 corridors: 12 ft max within the frontage zone (may flare beyond the frontage zone)
- d. SD-Highway Commercial, SD-Rural Highway: 30 ft max with MaineDOT entrance permit

E. INTERSECTION ANGLE

1. Entrances shall intersect the adjacent Street or Road at a horizontal angle of 90 degrees.

8. ENTRANCES

A. PURPOSE

1. To provide standards for the safe transition of vehicles at the point of intersection where Driveways, parking lots, and access ways meet a Street or Road.

F. LOCATION

1. All entrances shall be so located that vehicles approaching or using the entrance:

B. APPLICABILITY

1. Shall be able to obtain unobstructed sight distance in both directions along the adjacent Street or Road in accordance with Table 3.2 Sight Distance.
2. Shall be able to maneuver safely without interference with traffic.
3. Entrances shall not be constructed within the following distances of an intersection:

- C. GENERAL**
- 75 ft of an un-signalized intersection.
 - 125 ft of a signalized intersection.

1. An entrance onto a State Highway (R-4 or R-5) must be approved by the Maine Department of Transportation in accordance with 23 MRSA §704. A copy of MaineDOT approval shall be submitted to the Permitting Authority.

10. INTERSECTIONS

- G. SIGHT DISTANCE**
- Entrances shall be placed such that an exiting vehicle has an unobstructed view in both directions along the adjacent Street or Road in accordance with Table 3.2.
 - Sight distance shall be measured as follows:

D. DESIGN

- From a point of origin 4 ft above ground, 10 ft from the edge of the shoulder of the adjacent Street or Road, at the horizontal center of the proposed entrance.
- To a point 4 ft above ground, measured in a straight line along the Street or Road, farthest from the point of origin that can be seen without obstruction.
- Entrance side slopes and banks shall not be steeper than a horizontal to vertical ratio of 2:1.

TABLE 3.2 SIGHT DISTANCE

Design Speed (MPH)	Sight Distance (FT)
20	155
25	200
30	250
35	305
40	360
45	425
50	570
60	645

1. All entrances shall be so located that vehicles approaching or using the

H. CURB RADIUS

- Shall be able to obtain unobstructed sight distance in both directions along the adjacent Street or Road in accordance with Table 3.2 Sight Distance.
 - Shall be able to maneuver safely without interference with traffic.
2. Entrances shall not be constructed within the following distances of an intersection:

9. INTERSECTIONS

- A. PURPOSE**
- 75 ft of an un-signalized intersection.
 - 125 ft of a signalized intersection.

1. To establish geometric standards for intersections between Streets and Roads, calibrated to the Type of each intersecting facility.

G. SIGHT DISTANCE

1. Entrances shall be placed such that an exiting vehicle has an unobstructed view in both directions along the adjacent Street or Road in accordance

B. APPLICABILITY

- Applies to all new intersections and to substantial reconstruction of existing intersections within the Town.
- Intersections with State Highways (R-4 or R-5) are subject to MaineDOT review under Section 12.

1. Entrances shall be placed such that an exiting vehicle has an unobstructed view in both directions along the adjacent Street or Road, at the horizontal center of the proposed entrance.

C. GENERAL

- To a point 4 ft above ground, measured in a straight line along the Street or Road, farthest from the point of origin that can be seen without obstruction.
- The curb return radius at an intersection of two Streets or Roads is determined by the more urban Type of the two intersecting facilities, per Section 3 Tables 3.1a and 3.1b.

TABLE 3.3 SIGHT STANDARDS

Design Speed (MPH)	Sight Distance (FT)
20	155
25	200
30	250
35	305
40	360
45	425
50	570
60	645

D. SIGHT DISTANCE AT INTERSECTIONS

- Sight distance at an intersection shall comply with Table 3.2 for the higher design speed of the two intersecting facilities, except where modified by the Type-pair geometry in Section 9.

10. WATER MANAGEMENT

9. INTERSECTIONS

A. PURPOSE

A. PURPOSE

- To provide for the conveyance, control, and disposal of surface waters in the right-of-way of Streets and Roads, while protecting downstream water quality and aquatic habitat.

B. APPLICABILITY

- Applies to all new Streets and Roads under Section 6 and to the substantial reconstruction of existing Streets and Roads.
- Intersections with State Highways (R-4 or R-5) are subject to MaineDOT review under Section 12.

C. GENERAL

- Streets and Roads shall be designed to provide for the conveyance, control or disposal of surface waters including but not limited to the installation of ditches, culverts, catch basins, and piping systems consistent with their Type.

D. CULVERTS

- Between a Street Type and a Road Type, the curb return radius is determined by the Road Type, except where the Road Type connects directly to a D5 or D6 District frontage, in which case the Street Type's radius applies.
- Maximum grade within 75 ft of any intersection shall not exceed 2%.
- Culverts shall have the following standards:
 - Culverts must extend beyond the combined width of the traveled way and shoulders by 18 inches on both sides.
 - Culvert diameter shall be a minimum of 15 inches and placed at stream bed level over a prepared base.
- Culverts shall be constructed to enable unobstructed fish passage in either direction.

D. SIGHT DISTANCE AT INTERSECTIONS

- Sight distance at an intersection shall comply with Table 3.2 for the higher design speed of the two intersecting facilities.

E. DITCHES

10. WATER MANAGEMENT

10. WATER MANAGEMENT

A. PURPOSE

A. PURPOSE

- To provide for the conveyance, control, and disposal of surface waters in the right-of-way of Streets and Roads, while protecting downstream water quality and aquatic habitat.

F. GRADE CHANGES

- Streets and Roads shall be constructed so that all changes in grade shall be connected by vertical curves in order to provide a minimum stopping sight distance per Table 3.2.

B. APPLICABILITY

- Applies to all new Streets and Roads under Section 6 and to the substantial reconstruction of existing Streets and Roads under Section 14.

11. CONSTRUCTION STANDARDS

A. PURPOSE

- To provide engineering specifications for the construction of Streets and Roads consistent with their Type.

B. APPLICABILITY

- Applies to the construction of new Streets and Roads under Section 6 and to the substantial reconstruction of existing Streets and Roads under Section 14.
- Construction of state-aid roads (R-4 and R-5) is governed by MaineDOT specifications per Section 12.
- Culverts shall have the following standards:

STREETS, ROADS & DRIVEWAYS

- C. GENERAL** Ditches must extend beyond the combined width of the traveled way and shoulders by 18 inches on both sides.
- Streets and Roads shall remove stumps and rocks over 6 inches in diameter from a depth not less than 18 inches below the finished top.
 - All newly constructed Streets and Roads remain Private Roads until they are formally accepted as a Town Way per Section 6.F.

TABLE 3.3 CONSTRUCTION SPECIFICATIONS BY TYPE

Specification	S-1 / S-2 / S-3 (Town Way)	S-4 / S-5 (Lane / Alley)	R-1 Connector	R-2 / R-3 (Rural)	Driveway
1. Ditches shall be constructed and maintained with a minimum depth that are 2 ft below the sub-grade breakpoint.					
2. Ditches and embankments shall be provided with erosion control.					
Construction					
Aggregate sub-base course	18"	12"	18"	12"	n/a
Crushed aggregate base course	3"	3"	3"	3"	n/a
Hot Bituminous Pavement					
Total HBP thickness	2 1/2"	2"	2 1/2"	2" or gravel surface	n/a
Base course	1 1/2"	1"	1 1/2"	1"	n/a
Surface course	1"	1"	1"	1"	n/a

B. APPLICABILITY

D. R-4 AND R-5 CONSTRUCTION

- Applies to the construction of new Streets and Roads under Section 6 and Construction of new R-4 and R-5 segments and substantial reconstruction of existing R-4 and R-5 segments shall conform to MaineDOT specifications for the applicable functional classification.
- Where MaineDOT specifications are less stringent than this Section for any element under Town authority (frontage zone, sidewalks, planting strips, access management), this Article controls for those elements.

12. COORDINATION WITH MAINE DOT

A. PURPOSE

- To establish the coordination protocol between the Town of Newcastle and the Maine Department of Transportation for state-aid roads.

Specification	S-1 / S-2 / S-3 (Town Way)	S-4 / S-5 (Lane / Alley)	R-1 Connector	R-2 / R-3 (Rural)	Driveway
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B. APPLICABILITY

- Applies to all R-4 (Highway Commercial) and R-5 (Rural Highway) segments.

Construction					
Aggregate sub-base course	18"	12"	18"	12"	n/a
Crushed aggregate base course	3"	3"	3"	3"	n/a

C. AUTHORITY DIVISION

- MaineDOT controls** the geometric design and construction of the cartway, shoulders, drainage within the cartway, and signage of State Highways, in accordance with MaineDOT's current Highway Design Guide and applicable federal standards.
- The Town controls**, through this Article and Article 2, the frontage zone, building setbacks, sidewalks (where present), planting strips, street trees, and access management (curb cut spacing and location) along State Highways.
- Where a conflict arises between MaineDOT requirements and Town requirements for the same physical element, MaineDOT controls within the right-of-way and the Town controls outside the right-of-way.

D. ENTRANCE PERMITS

- An entrance onto a State Highway requires a MaineDOT entrance permit under 23 MSA §704 in addition to any permit required by this Article.
- The applicant shall submit a copy of the MaineDOT entrance permit to the Permitting Authority before the Zoning Permit is issued.

E. FUNCTIONAL CLASSIFICATION

- MaineDOT's functional classification of a segment (Principal Arterial, Minor Arterial, Major Collector, Minor Collector, Local) is independent of the Type assigned under this Article. The Type addresses form and character; the functional classification addresses transportation function for federal funding purposes.
- The Town may consider MaineDOT functional classification as one factor in the classification rubric of Section 5.D.

13. ADMINISTRATION

- Applies to all R-4 (Highway Commercial) and R-5 (Rural Highway) segments.

A. PURPOSE

- To describe the powers and duties of the review bodies for matters under this Article, and to coordinate Article 3 permitting with the development review framework of Article 8 (Administration).

C. AUTHORITY DIVISION

- MaineDOT controls** the geometric design and construction of the cartway, shoulders, drainage within the cartway, and signage of State Highways, in accordance with MaineDOT's current Highway Design Guide and applicable federal standards.

C. PERMITTING AUTHORITY

- Where a conflict arises between MaineDOT requirements and Town requirements for the same physical element, MaineDOT controls within the right-of-way and the Town controls outside the right-of-way.
- The Planning Board reviews and approves:
 - Construction of new Streets and Roads under Section 6.
 - Substantial reconstruction of existing Streets and Roads under Section 14.

D. ENTRANCE PERMITS

- An entrance onto a State Highway requires a MaineDOT entrance permit under 23 MSA §704 in addition to any permit required by this Article.
- The applicant shall submit a copy of the MaineDOT entrance permit to the Permitting Authority before the Zoning Permit is issued.

D. INSPECTIONS

- There shall be at least one on-site inspection by the Permitting Authority or their representative during construction, with the assistance of the applicant's engineer. The applicant's engineer shall certify completion and compliance with the standards of this Article.

- The Planning Board reviews and approves:
 - Construction of new Streets and Roads under Section 6.
 - Substantial reconstruction of existing Streets and Roads under Section 14.

E. APPLICATION FEES

- The application fee shall be the amount included in the Town's fee schedule.
- The Town may consider MaineDOT functional classification as one factor in the classification rubric of Section 5.D.

13. ADMINISTRATION

- A permit issued under this Article shall be valid for a period of twelve months from the date of original issue.

G. APPEALS

- Where a person shall deem themselves aggrieved by an order made by the Permitting Authority:
 - The person may file an appeal to the Board of Appeals within 10 days of the date of the order.
 - The person shall be afforded a hearing on the matter before the Board of Appeals.

C. PERMIT VALIDITY

- c. Unless by their authority the aggrieved order is revoked, such order shall remain in force and be forthwith complied with by the person.
1. The Code Enforcement Officer reviews and approves:

H. WAIVERS

- a. May construction and relocation permits.
- b. Entrance permits.
1. The Permitting Authority may grant waivers from the dimensional standards of Section 3 (Type Standards Table) as explicitly authorized in this Article and in accordance with Section 1.D Compliance, but may not grant waivers from the sight distance standards of Section 8.G or from the State Highway entrance permit requirement of Section 12.D.
2. The Permitting Authority may grant waivers from the dimensional standards of Section 3 (Type Standards Table) as explicitly authorized in this Article and in accordance with Section 1.D Compliance, but may not grant waivers from the sight distance standards of Section 8.G or from the State Highway entrance permit requirement of Section 12.D.
3. Reclassification petitions under Section 5.F.
4. The road commissioner reviews and certifies all construction phase work.

14. NONCONFORMING STREETS & ROADS**A. PURPOSE**

1. To provide for the continued operation of existing Streets and Roads that do not currently meet the standards of their assigned Type, and to specify the conditions under which conformity is required.

B. APPLICABILITY**E. APPLICATION FEES**

1. Applies to all Streets and Roads classified under Section 5 that do not currently meet one or more standards of their assigned Type as set forth in Section 3 (Type Standards Table) or Section 11 (Construction Standards).

C. CONTINUATION

1. A nonconforming Street or Road may continue to operate in its existing condition.
2. General maintenance — including patching, resealing, restriping, shoulder reshaping, and culvert replacement — is permitted without bringing the Street or Road into conformity.

G. APPEALS

1. Whenever a person shall deem themselves aggrieved by an order made by the Permitting Authority, they may file an appeal with the Board of Appeals within 10 days of the date of the order.

D. SUBSTANTIAL RECONSTRUCTION

1. Substantial reconstruction of a nonconforming Street or Road requires conformity with the standards of the assigned Type, except as follows:
 - a. Where the existing right-of-way precludes a Type Standard from being met without taking additional land, the standard may be modified by the Permitting Authority to the extent necessary to fit within the existing right-of-way.
 - b. The Code Enforcement Officer or Planning Board may require the reservation of a 20 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of pedestrian traffic or utilities.
 - c. The Permitting Authority may require the reservation of a 50 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of the road.

H. WAIVERS

1. The Permitting Authority may grant waivers from the dimensional standards of Section 3 (Type Standards Table) as explicitly authorized in this Article and in accordance with Section 1.D Compliance, but may not grant waivers from the sight distance standards of Section 8.G or from the State Highway entrance permit requirement of Section 12.D.
2. "Substantial reconstruction" is defined in the same manner as in the prior Newcastle Road, Driveway, and Entrance Ordinance, namely: improvements to a previously constructed Street or Road, including but not limited to extensions to the length or width, the rip up and replacement of sub-surface road building materials for a length or section of the Street or Road that goes beyond activities associated with General Maintenance, the addition of sidewalks or wholesale rebuilding of pre-existing sidewalks, or a change from one permanent road surfacing material to another such as from dirt to asphalt, asphalt to concrete, or asphalt to dirt.

14. NONCONFORMING STREETS & ROADS**A. PURPOSE**

1. To provide for the continued operation of existing Streets and Roads that do not currently meet the standards of their assigned Type, and to specify the conditions under which conformity is required.

B. APPLICABILITY**E. RECLASSIFICATION TO RESOLVE NONCONFORMITY**

1. Where a nonconforming Street or Road cannot reasonably be brought into conformity with its assigned Type, a reclassification petition may be filed under Section 5.E to assign a Type that more accurately reflects the segment's current and likely future character.

C. CONTINUATION

1. A nonconforming Street or Road may continue to operate in its existing condition.

F. ACCEPTANCE OF A NONCONFORMING PRIVATE ROAD AS A TOWN WAY

1. A Private Road that does not meet the construction standards of Section 11 for its assigned Type may not be accepted as a Town Way until the road is reconstructed to meet those standards.
2. The cost of such reconstruction shall not be borne by the Town.
3. No road shall be accepted as a Town Way without a formal vote to accept it at Annual Town Meeting.

D. SUBSTANTIAL RECONSTRUCTION

1. Substantial reconstruction of a nonconforming Street or Road requires conformity with the standards of the assigned Type, except as follows:
 - a. Where the existing right-of-way precludes a Type Standard from being met without taking additional land, the standard may be modified by the Permitting Authority to the extent necessary to fit within the existing right-of-way.
 - b. The Code Enforcement Officer or Planning Board may require the reservation of a 20 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of pedestrian traffic or utilities.
 - c. The Permitting Authority may require the reservation of a 50 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of the road.
2. "Substantial reconstruction" is defined in the same manner as in the prior Newcastle Road, Driveway, and Entrance Ordinance, namely: improvements to a previously constructed Street or Road, including but not limited to extensions to the length or width, the rip up and replacement of sub-surface road building materials for a length or section of the Street or Road that goes beyond activities associated with General Maintenance, the addition of sidewalks or wholesale rebuilding of pre-existing sidewalks, or a change from one permanent road surfacing material to another such as from dirt to asphalt, asphalt to concrete, or asphalt to dirt.

E. RECLASSIFICATION TO RESOLVE NONCONFORMITY

1. Where a nonconforming Street or Road cannot reasonably be brought into conformity with its assigned Type, a reclassification petition may be filed under Section 5.E to assign a Type that more accurately reflects the segment's current and likely future character.

F. ACCEPTANCE OF A NONCONFORMING PRIVATE ROAD AS A TOWN WAY

1. A Private Road that does not meet the construction standards of Section 11 for its assigned Type may not be accepted as a Town Way until the road is reconstructed to meet those standards.
2. The cost of such reconstruction shall not be borne by the Town.
3. No road shall be accepted as a Town Way without a formal vote to accept it at Annual Town Meeting.